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FRAMEWORK ACT ON EDUCATION

[Enforcement Date 19. Jun, 2019.] [Act No.15950, 18. Dec, 2018., Partial Amendment]

교육부 (학교혁신정책과) , 044-203-6450

CHAPTER I GENERAL PROVISIONS

Article 1 (Purpose) The purpose of this Act is to provide for the rights and duties of citizens and the obligations of the State and local governments on education, and prescribe an educational system and fundamental matters for its operation.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 2 (Principle of Education) Education shall aim at enabling every citizen to lead a life worthy of humankind and to contribute to the development of a democratic state and the realization of an ideal of human co-prosperity, by ensuring cultivation of character, development of abilities for independent life, and necessary qualities as a democratic citizen under the humanitarian ideal.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 3 (Right to Learn) Every citizen shall have a right to learn through life and to receive an education according to his/her abilities and aptitudes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 4 (Equal Opportunities in Education) (1) No citizen shall be treated with discrimination in education for reasons of gender, religion, faith, race, social standing, economic status, or physical conditions, etc.

(2) The State and local governments shall prepare and implement policies for minimizing gaps in educational conditions, such as achieving a balance between supply of and demand for teachers among regions, to enable learners to gain access to equal opportunities in education.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 5 (Educational Independence) (1) The State and any local government shall guarantee educational independence and speciality, and establish and implement educational policies reflecting regional circumstances.

(2) The autonomy in school administration shall be respected, and school personnel, students and their parents, and residents of districts may participate in school administration, as prescribed by statutes and regulations.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 6 (Educational Neutrality) (1) Education shall be administered to secure the purpose of education per se and it shall not be used as a tool for propagating any political, factional, or individual biased views.

(2) No school founded by the State and the local government shall conduct religious education in favor of any particular religion.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 7 (Educational Finances)(1) The State and local governments shall establish and implement a policy necessary to secure stability of educational finances.

(2) Matters necessary for local education subsidies, etc. for stability of educational finances shall be determined separately by other statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 8 (Compulsory Education)(1) Compulsory education shall be elementary education for six years and secondary education for three years.

(2) Every citizen shall have a right to receive the compulsory education referred to in paragraph (1).

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 9 (School Education)(1) Schools shall be established to provide early childhood education, elementary education, secondary education, and higher education.

(2) Schools shall be public in nature and shall make efforts to maintain and develop sciences and cultural heritage and promote the lifelong education of residents as well as educating students.

(3) School education shall be provided with an emphasis on education of the whole person, including the development of creativity and the cultivation of human nature for students.

(4) Fundamentals of school education, such as types, establishment, and management of schools, shall be determined separately by other statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 10 (Social Education)(1) All forms of social education for lifelong education of citizens shall be encouraged.

(2) Completion of social education may be recognized as completion of school education equivalent thereto, as prescribed by statutes and regulations.

(3) Fundamentals of social education, such as types, establishment, and management of institutions for social education, shall be determined separately by other statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 11 (Establishment of Schools)(1) The State and local governments shall establish and manage schools and institutions for social education.

(2) Any juristic person or private person may establish and manage schools and institutions for social education, as prescribed by statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

CHAPTER II PARTIES CONCERNED IN EDUCATION

Article 12 (Learners)(1) Fundamental human rights of learners including students shall be respected and protected in the process of school education or social education.

(2) The curriculum of education, educational methods, educational materials, and educational facilities shall be provided to make the most of a learner's ability in a way that respects his/her personality and values his/her individuality.

(3) Students shall establish learning ethics and observe school regulations, and shall neither interfere with teachers' educational or research activities nor disturb school order.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 13 (Guardians)(1) Guardians such as parents shall have a right and an obligation to educate their offspring or children under their care so that they grow up with good human nature and in perfect health.

(2) Guardian such as parents may present their opinions about education of their offspring or children under their care to schools, and the schools shall respect their opinions.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 14 (School Teachers)(1) Professionalism of teachers in school education shall be respected, economic and social status of school teachers shall be privileged, and such status shall be guaranteed.

(2) School teachers shall make efforts to improve their character and quality as educators.

(3) School teachers shall establish educational ethics as a foundation for teaching learning ethics and knowledges to students, and developing aptitude of each student.

(4) School teachers shall neither guide nor instigate students for the purpose of supporting or opposing any particular political party or faction.

(5) School teachers may hold other public positions as prescribed by statutes.

(6) Matters necessary for the appointment, service, remuneration, pension, etc. of school teachers shall be determined separately by other statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 15 (School Teachers' Organizations)(1) School teachers shall make efforts to promote education and to advance culture in cooperation with another, and they may form teachers' organizations at local governments and the central government to improve teachers' economic and social status.

(2) Necessary matters for forming teachers' organizations referred to in paragraph (1) shall be prescribed by Presidential Decree.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 16 (Founders or Managers of Schools, etc.)(1) A founder or manager of a school or institution for social education shall secure facilities, equipments, finances, school teachers for education, etc. and shall operate and manage them, as prescribed by statutes and regulations.

(2) The head of a school, or a founder or manager of an institution for social education shall select and educate learners as prescribed by statutes and regulations and shall record and manage the course of education, such as academic records, etc. of learners.

(3) The curriculum of education of a school or an institution for social education shall be open to learners in advance.

Article 17 (State and Local Governments)The State and local governments shall provide direction and supervision to schools and institutions for social education.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

CHAPTER III PROMOTION OF EDUCATION

Article 17-2 (Advancement of Equality of Education of Males and Females)(1) The State and local governments shall formulate and implement policies to achieve gender equality in a more active way.

(2) The State and local governments, and founders or managers of schools or institutions for social education referred to in Article 16, shall not practise discrimination, such as restricting or excluding participation or benefits on the grounds of gender, without any reasonable grounds, when providing education.

(3) The policies referred to in paragraph (1) shall include educational plans to focus on promoting the fields in which female activities are insignificant, such as sports, science and technology.

(4) The Deliberation Committee for Equal Education of Male and Female shall be established in order to provide advice to the Minister of Education in regard to matters prescribed by Presidential Decree, including criteria for and details of school curricula for advancement of gender equality in school education. <Amended by Act No. 8852, Feb. 29, 2008; Act No. 11690, Mar. 23, 2013>

(5) Necessary matters for the members' qualification, composition and operation of the Deliberation Committee for Equal Education of Male and Female referred to in paragraph (4) shall be prescribed by Presidential Decree.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 17-3 (Establishment of Learning Ethics)The State and local governments shall establish and implement policies necessary for making all citizens enable to acquire ethics required for various processes of education, such as the studies, research, and examinations.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 17-4 (Cultivation of Healthy Gender Consciousness)(1) The State and local governments shall establish and implement policies necessary for protecting the dignity of students' gender and to cultivate healthy sentiments of gender.
(2) The policies referred to in paragraph (1) shall include educational programs to respect the dignity and personality of individual students and plans to provide education and convenient facilities, in consideration of male and female gender roles.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 17-5 (Prevention of Safety-Related Accidents)The State and local governments shall establish and implement policies necessary for guaranteeing the safety of students, teachers, and staff and for preventing accidents.
[This Article Newly Inserted by Act No. 13003, Jan. 20, 2015]

Article 17-6 (Peaceful Pursuit of Reunification)The State and local governments shall establish and implement policies necessary for students or teachers to get education or training to build free democratic basic order and pursue the peaceful reunification.
[This Article Newly Inserted by Act No. 14150, May 29, 2016]

Article 18 (Special Education)The State and local governments shall establish and operate schools for those who need special educational care due to physical, mental, and intellectual disabilities and shall establish and implement policies to support their education.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 19 (Education for Gifted Children)The State and local governments shall establish and implement policies for education for gifted children in the fields of sciences, arts, athletics, etc.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 20 (Early Childhood Education)The State and local governments shall establish and implement policies necessary for promoting early childhood education.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 21 (Vocational Education)The State and local governments shall establish and implement policies for all citizens to receive education for knowledge for their vocation and to develop their abilities through school education and social education.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 22 (Science and Technology Education)The State and local governments shall establish and implement policies to promote science and technology education.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 22-2 (Physical Education at Schools)The State and local governments shall establish and implement policies to improve students' physical strength and to encourage their physical activities.
[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 23 (Informatization of Education)(1) The State and local governments shall establish and implement policies necessary for informatization of education, such as providing support for education on informatization and education through information communications media and promoting the educational information industry.
(2) Education on informatization under paragraph (1) shall include education regarding legal and ethical standards necessary to use information communications media in order to prevent any damage to others' reputation, lives, bodies, and property.

[This Article Wholly Amended by Act No. 15950, Dec. 18, 2018]

Article 23-2 (Computerization of Administration of Schools and Educational Organizations)The State and local governments shall devise policies for electronic processing of administration of schools and educational organizations.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 23-3 (Principles of Student Information Protection)(1) Student information such as school activity records shall be collected, processed, used, or managed for educational purpose.
(2) Guardians such as parents shall have a right to access to student information referred to in paragraph (1) on those under their care such as their offspring.
(3) The student information referred to in paragraph (1) may not be provided to a third party without a consent from the relevant student (where the student is a minor, the relevant student and his guardians such as his parents) except as provided in statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 24 (Promotion of Science and Culture)The State and local governments shall establish and implement policies, such as establishment of academic institutions and support for research fund, in order to research and promote sciences and culture.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 25 (Fostering Private Schools)The State and local governments shall support and foster private schools and shall ensure that various and distinctive purposes of founding private schools shall be respected.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 26 (Evaluation and Certification System)(1) The State may establish and operate a system on achievement evaluation and certification of attainments so that citizens' academic records or such can be fairly evaluated and gain public recognition in society.

(2) The evaluation and certification system referred to in paragraph (1) shall be mutually linked to educational systems, such as school curricula.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 26-2 (Disclosure of Information Related to Education)(1) The State and local governments shall open to public information related to education under their possession and control, in order to guarantee citizens' right to know and to learn.

(2) Fundamentals for disclosure of information related to education referred to in paragraph (1) shall be prescribed separately by other statutes.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 26-3 (Survey of Statistics Related to Education)The State and local governments shall devise policies necessary for a survey of statistics related to education in order to effectively establish, implement and assess educational systems.

[This Article Newly Inserted by Act No. 14601, Mar. 21, 2017]

Article 27 (Promotion of Health and Welfare)(1) The State and local governments shall establish and implement necessary policies to promote health and welfare of students and school personnel. [<Amended by Act No. 8915, Mar. 21, 2008>](#)

(2) The State and local governments shall establish and implement policies necessary to construct housing for student welfare in order to create safe living environment for students. [<Newly Inserted by Act No. 8915, Mar. 21, 2008>](#)

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 28 (Scholarships, etc.)(1) The State and local governments shall establish and provide scholarships, educational expense aid or such for persons who have difficulty in receiving education due to economic reasons.

(2) The State may subsidize all or part of school tuition fees or other required expenses to the following persons:

1. Persons who are in educational programs to be teachers;
2. Persons who major in or research, inside or outside the country, in fields especially needed by the State.

(3) Necessary matters for methods or procedures for granting scholarships and subsidies for educational expenses, and the qualifications for and duties of those who are to be provided with such scholarships and subsidies under paragraphs (1) and (2) shall be determined by Presidential Decree.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

Article 29 (Globalized Education)(1) The State shall make efforts to provide globalized education for citizens to be equipped with knowledge and abilities as members of global community.

(2) The State shall provide policies to conduct school education or social education for Koreans residing overseas.

(3) The State shall provide policies on studying overseas to promote academic studies and shall support education and research activities for better understanding of the Republic to foreign countries and to establish the identity of Korean culture.

(4) The State shall provide policies for educational cooperations with foreign governments and international organizations.

[This Article Wholly Amended by Act No. 8705, Dec. 21, 2007]

▣ **ADDENDUM <Act No. 6214, Jan. 28, 2000>**

This Act shall enter into force six months after the date of its promulgation.

⊕ **ADDENDA <Act No. 6400, Jan. 29, 2001>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 6738, Dec. 5, 2002>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 7071, Jan. 20, 2004>**

This Act shall enter into force on the date of its promulgation.

⊕ **ADDENDA <Act No. 7253, Dec. 30, 2004>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 7399, Mar. 24, 2005>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 7685, Nov. 8, 2005>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 8415, May 11, 2007>**

This Act shall enter into force three months after the date of its promulgation.

▣ **ADDENDUM <Act No. 8543, Jul. 27, 2007>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 8705, Dec. 21, 2007>**

This Act shall enter into force on the date of its promulgation.

▣ **ADDENDA <Act No. 8852, Feb. 29, 2008>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 8915, Mar. 21, 2008>**

This Act shall enter into force three months after the date of its promulgation.

▣ **ADDENDA <Act No. 11690, Mar. 23, 2013>**

Article 1 (Enforcement Date)

▣ **ADDENDUM <Act No. 13003, Jan. 20, 2015>**

This Act shall enters into force on the date of its promulgation.

▣ **ADDENDUM <Act No. 14150, May 29, 2016>**

This Act shall enter into force three months after the date of its promulgation.

▣ **ADDENDUM <Act No. 14601, Mar. 21, 2017>**

This Act shall enter into force three months after the date of its promulgation.

▣ **ADDENDUM <Act No. 15950, Dec. 18, 2018>**

This Act shall enter into force six months after the date of its promulgation.